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File No.: EXP202306304

RESOLUTION OF

PROCEEDING OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 5, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that he is a neighbor of the respondent and that the latter has installed a camera in a window of his home, which, due to its location and orientation, is capable of capturing images of the access to the complainant's home, which is located on a lower floor than the respondent's home.

Along with the complaint, the complainant provides images showing the location of the camera and a message sent to the Community Administrator regarding the camera and the response received, in which he was informed that the installation of the complained camera had not been authorized.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was conducted on May 16, 2023, and was returned by the Postal Service with the indication of "unknown" on May 25, 2023. The forwarding was reiterated on May 29, 2023, and it is recorded as delivered on June 20, 2023.

There is no record that the respondent has provided the requested information to this Agency.

THIRD: On July 5, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing. There is no record that the respondent has provided the requested information to this Agency.

FOURTH: On December 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent by certified postal mail on 05/12/2023 and was returned due to "wrong address"; The publication in the Official State Gazette (BOE) of the initiation agreement of the present procedure occurred on 21/12/2023.

SIXTH: Once the deadline for submitting allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: There is a surveillance camera installed at the top of the grille of the window on the facade of the respondent's home.

SECOND: The camera is oriented towards the two flights of stairs and the landing, which are located just below and serve as access exclusively for that home, as well as towards the stairwell leading to the homes.

THIRD: Due to its position, the camera is capable of recording the access hallway and the entrance of the complainant's home, as well as other common areas of the building.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Unfulfilled obligation

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which stipulates that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed." This means that in a specific processing operation, only relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed.

The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is, cameras and video cameras installed for security purposes may not obtain images of

the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities. Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot obtain images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

The complainant states that they are a neighbor of the respondent and that the latter has installed a camera in a window of their home, which, due to its location and orientation, is capable of capturing images of the access to the complainant's home, which is located on a lower floor than the respondent's home.

The complainant provides images of the camera's location and a message sent to the Community Administrator regarding the camera and the response received, which indicated that the installation of the reported camera had not been authorized.

Therefore, the camera is capable of recording the access hallway and the entrance of the complainant's home, as well as other common areas of the building, and, in accordance with the regulations outlined, there is a violation of Article 5.1.c) for breaching the principle of data minimization.

IV

It is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed," which implies the commission of an infringement classified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...) a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

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For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

Article 72. Infringements considered very serious.

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below: (...) b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

For its part, Recital 148 of the GDPR states:

"In order to reinforce the application of the rules of this Regulation, any infringement of it must be

punished with sanctions, including administrative fines, in addition to appropriate measures imposed by the supervisory authority under this Regulation, or in substitution thereof.

In the case of a minor infringement, or if the fine that is likely to be imposed would constitute a disproportionate burden for a natural person, a warning may be issued instead of a fine.

However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringement, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances. The imposition of sanctions, including administrative fines, must be subject to sufficient procedural guarantees in accordance with the general principles of Union Law and the Charter, including the right to effective judicial protection and to a process with all guarantees.”

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," provides in its third paragraph that:

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“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

VI

Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

In the present case, the party being addressed must proceed, within 30 days from the receipt of this resolution:

- To prove that it has either removed the camera from its current location or reoriented it, so that the camera captures only the minimum portion necessary to preserve the safety of persons and property, avoiding both the capture of access to neighboring residences of third parties and other unauthorized common areas.

It is warned that failure to comply with the order to adopt measures imposed by this agency by resolution of the present procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days from the date this resolution becomes final and enforceable,

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- certify that the camera has been removed from its current location or reoriented in such a way that it captures only the minimum essential portion necessary to preserve the safety of individuals and property, avoiding both the capture of access to neighboring residences of third parties and that of other unauthorized common areas.

THIRD: NOTIFY this resolution to B.B.B.

COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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